

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 778

BY EDUCATION COMMITTEE

AN ACT

RELATING TO EDUCATION; AMENDING SECTION 33-203, IDAHO CODE, TO REVISE PROVISIONS REGARDING DUAL ENROLLMENT; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 33-203, Idaho Code, be, and the same is hereby amended to read as follows:

33-203. DUAL ENROLLMENT. (1) The parent or guardian of a child of school age who is enrolled in a nonpublic school or a public charter school shall be allowed to enroll the student in any public school, including another public charter school, for dual enrollment purposes. The board of trustees of the school district or board of directors of the public charter school shall adopt procedures governing enrollment pursuant to this section. If enrollment in a specific program reaches the maximum for the program, priority for enrollment shall be given to a student who is enrolled full-time in the public school. In the case of dual enrollment in a public charter school, the student who is dually enrolled shall not count toward the public charter school's maximum enrollment restrictions. The dually enrolled student's primary education provider shall be the provider in which the student is registered for the majority of the coursework. At no time may the dual enrollment provisions be used to circumvent a public charter school's lottery requirements.

(2) Any student participating in dual enrollment may enter into any program in the public school available to other students, subject to compliance with the eligibility requirements herein and the same responsibilities and standards of behavior and performance that apply to any student's participation in the activity, except that the academic eligibility requirements for participation in nonacademic activities are as provided for herein.

(3) All schools shall be allowed to include dually enrolled nonpublic school and public school students for the purposes of state funding only to the extent of the student's participation in the public school programs.

(4) Oversight of academic standards relating to participation in nonacademic public school activities shall be the responsibility of the primary education provider for that student. In order for any nonpublic school student or public school student to participate in nonacademic public school activities for which public school students must demonstrate academic proficiency or eligibility, the nonpublic school or public school student shall demonstrate composite grade-level academic proficiency on any state board of education recognized achievement test, portfolio, or other mechanism as provided for in state board of education rules. Additionally, a student shall be eligible if ~~he~~ the student achieves a minimum composite,

core, or survey test score within the average or higher-than-average range as established by the test service utilized on any nationally normed test. Demonstrated proficiency shall be used to determine eligibility for the current and ~~next~~ following school years. School districts and public charter schools shall provide to nonpublic students who wish to participate in dual enrollment activities the opportunity to take state tests or other standardized tests given to all regularly enrolled public school students.

(5) A public school student who has been unable to maintain academic eligibility is ineligible to participate in nonacademic public school activities as a nonpublic school or public charter school student for the duration of the school year in which the student becomes academically ineligible and for the following academic year.

~~(6) A nonpublic school or public school student participating in nonacademic public school activities must reside within the attendance boundaries of the school for which the student participates. Any student enrolled in a public school or public charter school and any nonpublic student as defined in subsection (10) of this section or a student enrolled pursuant to the provisions of section 33-1402, Idaho Code, shall be eligible to participate in all nonacademic activities, including interscholastic sports, at the public school or public charter school in which the student is enrolled in the same manner and to the same extent as any other student enrolled in such school. Nothing in this subsection shall be construed to limit the authority of an association to regulate the eligibility of students transferring between schools operated by a public school district as defined in section 33-1001, Idaho Code.~~

(7) Any student enrolled in a public charter school and any nonpublic student as defined in subsection (10) of this section may elect to participate in nonacademic activities, including interscholastic sports, at the public school within the attendance boundaries of the student's residence, provided the activity is not offered at the student's school of enrollment. Nothing in this subsection shall be construed to limit the authority of an association to regulate the eligibility of students transferring between schools operated by a public school district as defined in section 33-1001, Idaho Code.

~~(7) (8)~~ Dual enrollment shall include the option of joint enrollment in a regular public school and an alternative public school program. The state board of education shall establish rules that provide funding to school districts for each student who participates in both a regular public school program and an alternative public school program.

~~(8) (9)~~ Dual enrollment shall include the option of enrollment in a postsecondary institution. Any credits earned from an accredited postsecondary institution shall be credited toward state board of education high school graduation requirements.

~~(9) (10)~~ A nonpublic student is any student who receives educational instruction outside a public school classroom and such instruction can include, but is not limited to, a private school or a home school.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.